

Equivalent Citations

citation codes .

SMT. ARCHANA JAIN v. BHARAT SANGH

State Consumer Disputes Redressal Commission (Sep 9, 2024)

CASE NO.

A/24/229

DISPOSITION

DISMISSED

ATTORNEY

M. P. STATE CONSUMER DISPUTES REDRESSAL COMMISSION, BHOPAL

PLOT NO.76, ARERA HILLS, BHOPAL

FIRST APPEAL NO. 229 OF 2024

(Arising out of order dated 21.12.2023 passed in C.C.No.33/2021 by District Commission, Mandla) SMT.

ARCHANA JAIN W/O SHRI ANIL JAIN. ... APPELLANT

Versus

UNION OF INDIA THROUGH GENERAL MANAGER,

WESTERN CENTRAL RAILWAY, JABALPUR. ... RESPONDENT.

BEFORE:

HON'BLE SHRI A. K. TIWARI : ACTING PRESIDENT HON'BLE DR. SRIKANT PANDEY :

MEMBER

O R D E R

09.09.2024

Shri Akash Sahu, learned counsel for the appellant. Shri Sandeep Savita, learned counsel for the respondent. As per A. K. Tiwari :

Feeling aggrieved by the order dated 21.12.2023 passed by the District Consumer Disputes Redressal Commission, Mandla (for short 'District Commission') in C.C.No.33/2021 whereby the District Commission has dismissed the complaint filed by the complainant/appellant, the appellant/complainant has filed this appeal.

2. In brief facts of the case as stated by the complainant/appellant are that on 15.03.2020 she was travelling on berth number 44 in Coach No.B-3 of train number 22192 from Jabalpur to Vidisha. It is alleged by the complainant that during journey her ladies purse containing Rs.25,000/- cash, mobile, artificial jewelry, ATM card, driving licence, voter ID has been stolen between Jabalpur to Itarsi. It is alleged by the complainant

-2-

that she complained about it to the TTE who in turn informed the police on which railway police in the train on 16.03.2020 at about 5.30 am lodged report via Dehati Nalsi and thereafter GRP Itarsi lodged FIR. Being aggrieved, the complainant filed a complaint before the District Commission seeking total compensation of Rs.1,09,620/-. The District Commission dismissed the complaint. Hence this appeal.

3. Heard learned counsel for the parties and perused the record.

4. Learned counsel for the complainant/appellant argued that the District Commission did not consider this aspect that there was deficiency in service on part of the Railways in not taking care and safety of their passengers and luggage in reserved coach such as 3AC. The District Commission did not consider that there was negligence on part of Railways. He therefore prayed for setting aside the impugned order and giving relief to the complainant as claimed in the complaint.

5. Learned counsel for the opposite party/respondent-Railways argued that the District Commission has not considered this important aspect that the complainant should have insured or booked such valuable articles with the Railways. There is no such evidence that whether she was carrying cash and jewelry allegedly stolen. He argued that as per Section 100 of the Railways Act, the railways can only be held responsible if the booked luggage was stolen. There must be attribution of negligence or -3-

deficiency in service on part of the Railway Officials. He argued that the District Commission has rightly dismissed the complaint. He therefore prayed for dismissal of appeal.

6. After hearing learned counsel for the parties and on careful perusal of the record and the impugned order we find that though the complainant has alleged that *theft* took place between Jabalpur & Itarsi of which she made complaint to the TTE who promptly informed the police and the railway police immediately lodged her report at Dehati Nalsi. It is not the case of the complainant that the concerned TTE and Railway Staff did not co-operate her. It is also not the allegation of the complainant that TTE allowed the unauthorised persons in the coach. Also the complainant did not make it clear that whether she kept her luggage chained and locked with the hooks provided beneath the berth. If she was travelling with such valuables she ought to have taken care of the same or can put them in trolley bag after chained and locked beneath the berth instead of putting the same in a hand bag/ladies purse.

7. The complainant has also not alleged that there was no railway staff or RPF personnel. The complainant has not been able to prove any negligence or deficiency in service on part of Railways. Thus we find that the complainant herself was negligent in not keeping her handbag/ladies purse safe. In such circumstances, we find that when the complainant

-4-

herself was not vigilant in keeping her luggage safe, how can the Railways be held responsible?

8. Hon'ble Supreme Court in **Station Superintendent & Anr Vs Surender Bhola III (2023) CPJ 11 (SC)** has held:

"We fail to understand as to how the theft could be said to be in any way deficiency in

service by the Railways. If the passenger is not able to protect his own belongings, the Railways cannot be held liable."

9. In such circumstances, when the complainant failed to prove deficiency in service against the railways, therefore, on merits, as also in view of recent pronouncement of Apex Court, we are of the considered view that the District Commission has erred in allowing the complaint filed by the complainant/respondent, as the complainant has no case on merits.

10. In view of the above discussion, we do not find any illegality or infirmity in the impugned order passed by the District Commission. Accordingly, it is hereby affirmed.

11. In the result, this appeal fails and is hereby dismissed with no order as to costs. (A. K. Tiwari) (Dr. Srikant Pandey)

Acting President Member